

25TRCV04070 25TRCV04070

County: los-angeles

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Case Number: 25TRCV04070 Hearing Date: June 24, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

SHEENA

ZACHARIAH JOHN

Plaintiff,

Case No.:

25TRCV04070

vs.

[Tentative]

Sustained

AMERICAN

HONDA MOTOR CO., INC., a California corporation,

Defendants.

Hearing

Date: June
24, 2026

Moving Parties: Defendant American Honda Motor Company

Responding Party: Plaintiff Sheena Zachariah John

HEARING: Demurrer

The
Court considered the moving, opposition, and reply papers.

RULING

The Court sustains
the Demurrer with leave to amend.

BACKGROUND

On
December 1, 2025, Plaintiff Sheena
Zachariah John filed the Complaint against Defendant American Honda Motor
Company alleging causes of action for breach of express and implied warranty
under the Song-Beverly Act and violation of UCL law.

On February 4, 2026, Defendant filed
the First Amended Complaint (FAC).

On April 13, 2026,
Defendant filed the Demurrer.

On June 10, 2026,
Plaintiff filed the Opposition.

On June 16, 2026,
Defendant filed the Reply.

LEGAL STANDARD

A demurrer can be

used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

On May 13, 2026, the parties spoke telephonically regarding the Demurrer. Therefore, the Court finds that Defendant has satisfied the meet and confer requirement.

The instant case is a lemon law action regarding a 2020 Acura RDX, VIN: 5J8TC1H32LL019971.

Causes of Action 1 and 2 – Violation of the
Song-Beverly Act

Defendant argues Plaintiff's Song-Beverly claims are time-barred because they are governed by the four-year statute of limitations in Commercial Code section 2725, which begins running upon tender of delivery regardless of the plaintiff's knowledge of the breach. Defendant contends the breach alleged occurred on the date the vehicle was delivered to Plaintiff, April 26, 2020, and that absent sufficient facts supporting an alternative accrual date or tolling doctrine, both causes of action accrued at that time and are now untimely.

Defendant also argues that, independent of the timeliness issue, the FAC fails to state facts sufficient to establish a Song-Beverly claim. Defendant contends the FAC merely recites portions of the statutory framework without factual support specific to this plaintiff, this vehicle, or this defendant, referencing only vague and uncorroborated noise complaints without identifying what specific issues were never repaired. Defendant further argues the implied warranty claim independently fails because the complaint contains no factual allegations that the vehicle was unmerchantable at the time of purchase or within one year thereafter, and in fact reflects that the vehicle provided transportation during that period.

In opposition, Plaintiff argues the Song-Beverly Act causes of action are not time-barred because they did not accrue until around May 10, 2023, when Plaintiff discovered the vehicle had not actually been repaired despite multiple repair attempts. Plaintiff states that a breach of express warranty claim accrues after the last repair attempt rather than at the time of delivery, reasoning that an accrual rule tied to delivery would undermine the statute's purpose of giving sellers a reasonable opportunity to repair before consumers resort to litigation. Plaintiff contends that although the vehicle was presented to Defendant on three occasions before May 10, 2023, the cause of action did not arise until it became evident the repairs had failed.

On the implied warranty claim specifically, Plaintiff argues that the one-year duration of the implied warranty of merchantability creates only a prospective window during which a latent defect must exist, not a deadline by which the defect must be discovered or reported.

Plaintiff contends that so long as a defect existed during the warranty period, its later discovery does not defeat the claim, and that merchantability is evaluated as though the defect were known during the warranty period even if discovered years later.

Plaintiff also argues that the four-year statute of limitations was independently tolled by Defendant's express warranty, arguing that a multi-year express warranty explicitly extending to future performance of the vehicle tolls the limitations period for implied warranty claims until the plaintiff reasonably discovers the vehicle will not perform as warranted. Plaintiff notes Defendant offered a three-year, 36,000-mile express warranty here that similarly extended to future performance.

Plaintiff concludes that although the underlying defects may have existed at the time of sale, Plaintiff could not have known this at delivery, and the cause of action did not accrue until May 2023 when the prior repairs proved unsuccessful, making the complaint timely as filed within four years of that discovery.

Here, the Court finds that the FAC is improper because it fails to allege any defect within the subject vehicle. The FAC alleges that the car was brought in for service five times: three times for brake noise and twice for engine revving. However, the FAC does not allege that these issues were unresolved, nor that the car was plagued by any other defects. The FAC itself reads "The defects, malfunctions, and nonconformities that were presented to Defendant's authorized repair facilities multiple times and substantially impair the use, value, and/or safety of the Vehicle," which is conclusory and fails to state what defects Plaintiff's case is based on. (FAC ¶ 24.)

Therefore, the Court sustains the Demurrer as to the first and second causes of action with leave to amend.

Cause of Action 3 – Breach of UCL

Here, the UCL claim is based on the activity described in the first two causes of action and Defendant's alleged breach of the Song-Beverly Act. Thus, the Court must also sustain the Demurrer to the third cause of action as the statutory claims have been successfully demurred to.

Therefore, the Court
sustains the Demurrer as to the third cause of action with leave to amend.